

		At this stage, Plaintiff has adequately alleged facts which, if proven, could support a claim that Defendant misled Plaintiff and decedent regarding the available treatments for COVID-19. Whether Plaintiff can support the elements of her claim with evidence, including Defendant gaining an advantage and Plaintiff or decedent suffering prejudice, can be decided at a later stage. As for Defendant's contention that Plaintiff's claim is barred by the PREP Act, Defendant has not presented evidence or requested judicial notice of matters which could allow the Court to determine this issue at the pleading stage. For example, Defendant contends Remdesivir, which was allegedly provided to decedent, was a "covered countermeasure" because it was FDA-approved at relevant times. Defendant cites an FDA document which is not the subject of a request for judicial notice, but the Court cannot consider evidence at this stage unless it is subject to judicial notice. Defendant also does not cite case law discussing application of the PREP Act in this context. Therefore, the Court declines to sustain the demurrer on the grounds of PREP Act immunity.
9	21-01185998 <i>Jackson vs. Collectors Universe, Inc.</i>	Motion to Appear Pro Hac Vice Defendant Collectors Universe, Inc.'s (also sued as Professional Sports Authenticator a/k/a PSA) Application of Jonathan Parente to Appear as Counsel Pro Hac Vice is GRANTED. Defendant has submitted the verified application of counsel which complies with the California Rules of Court, Rule 9.40. Moving Party is to give notice.
10	22-01285836 <i>Marino vs. Orange County School of the Arts</i>	Motion for Summary Judgement and/or Adjudication Defendant Orange County School of Arts move for summary judgment in favor of Defendant and against Plaintiff Daniel B. Marino is DENIED. Plaintiff's Evidentiary Objections to Defendants' Evidence are OVERRULED for failure to comply with California Rules of Court, Rule 3.1354, subdivisions (a) and (b). Defendant's Evidentiary Objections to Plaintiff's Evidence are OVERRULED for failure to comply with California Rules of Court, Rule 3.1354, subdivisions (a) and (b). Plaintiff's request for judicial notice of excerpts from a publication by the State of California Department of Industrial Relations, Division of Labor Standards Enforcement, entitled "California Child Labor Laws 2013", pursuant to Evidence Code, section 452(b) is GRANTED.